

VCU313509 Asman, Bruce E. et al vs. Ponce, Cipriano et al

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-06-25

Motion: Plaintiffs' Motion for Leave to Amend

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Re: Asman, Bruce E. et al vs. Ponce, Cipriano et al

Case No.: VCU313509

Date: June 25, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiffs' Motion for Leave to Amend

Tentative Ruling: To deny the motion without prejudice

Facts

On May 28, 2026, Plaintiffs filed this motion for leave to amend to "to correct serious deficiencies [sic] caused by prior counsel and to properly present claims including, but limited to : *Fraud and misrepresentaion [sic] *Failure to disclose material facts *Property boundry [sic] and ownership disputes *Easement and use rights *Negligence and breach of duty"

The motion states that these amendments are necessary to "ensure a ir [sic] adjudiacation [sic] of the case"

Further that the prior complaint was prepared by a former attorney and that the former attorney "...failed to properly include key facts and legal claims related to my property purchase, including: *The garage that has always been used as part of my property *Lot line issues that were not disclosed prior to purchase *Water contamination issues affecting habitability *Representations made by the relator that were false or misleading."

Plaintiffs indicate they only recently became aware of the deficiencies, that the request is made in good faith and not for the purpose of delay.

Plaintiffs appear to have provided a proposed amended complaint.

In opposition, Defendants argue that the motion fails as to the lack of a proper declaration in support thereof in compliance with the Rules of Court.

Authority and Analysis

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296 [“[T]here is a strong policy in favor of liberal allowance of amendments.”].) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court.

However, the Court finds a lack of compliance with California Rule of Court, Rule 3.1324. It is within the court's discretion to require compliance with Rule 3.1324 before granting leave to amend. (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

Rule 3.1324 regulates the content of the motion and supporting declaration as follows:

“(a) Contents of motion

A motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.”

In this case, the motion fails to provide the information required by subsections (a)(2) and (3) and the Court cannot readily discern all of the amendments to evaluate whether granting leave is proper.

As to subsection (b), while the effect of the amendment appears to add allegations and causes of action, it is unclear to the Court when the facts giving rise to these amended allegations were discovered by Plaintiffs and why nearly ten months have passed between substitution of former counsel and this motion, as Plaintiffs seek leave to amend based on omissions by prior counsel.

Therefore, the Court denies the motion without prejudice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.